Nitin vs State Of West Bengal And Anr on 5 July, 2024

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2145/2024
NITIN
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STATE OF WEST BENGAL AND ANR
Through: Mr. Amit Ahlawat,
with SI Jitender K
Parbat.
Razzaque Ul Ali Ah
Section, Detect
Kolkata.

CORAM:
HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA
OR

% 05.07.2024

1. The Bail Application under Section 438 read with 482 Cr.P.C, 1973 has been filed on behalf of the petitioner seeking transit Anticipatory Bail in FIR No. 26/2024 for the offence under Sections 120B/420/467/468/71 IPC, registered at Police Station Ballygunge, Kolkata.

2. It is submitted that the aforementioned FIR has been registered at Kolkata. The petitioner has apprehension of being arrested by the police since he has been served a Notice under Section 91 Cr.PC dated 22.05.2024. He is in constant touch with the IO on the phone calls and WhatsApp but has This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 09/07/2024 at 04:16:00 been threatened by the IO, to appear before him or else the petitioner would have bear serious consequences.

3. The petitioner is working as LIC agent at LIC Branch No. 129, Moti Nagar, New Delhi. He has an apprehension of being arrested by the Kolkata police and thus, has sought transit Anticipatory Bail.

4. The IO has appeared on behalf of the respondent No. 1, from Police Station Ballygunge, Kolkata and has submitted that the petitioner has been co-operating in the investigation and only Notice under Section 91 Cr.PC had been issued for production of documents.

5. Learned APP appearing on behalf of the State, submits that he has no objection if the transit Anticipatory Bail is granted to the petitioner.

6. Submissions heard.

7. In the circumstances as narrated above, it is directed that the transit bail is granted to the petitioner for a period of 10 days, within which the petitioner is at liberty to approach the court concerned. The petitioner shall be released forthwith, with the following conditions:-

a) The petitioner shall furnish a personal bond in the sum of Rs.25,000/- with one surety of the like amount to the satisfaction of the Investigating Officer/Arresting Officer/ Chief Judicial Magistrate (CJM), Alipur, on presentation of the Bail Order.

b) The petitioner shall not contact, nor visit, nor offer any inducement, threat or promise to any of the prosecution witnesses or other persons acquainted with the facts of case.

c) The petitioner shall not tamper with evidence nor otherwise indulge in any act or omission that is unlawful or that would prejudice the proceedings in the pending trial.

d) The applicant shall join the investigations as and when directed by the IO.

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e) The applicant shall produce all the requisite information, documents in his power and possession, as and when directed by the Investigating Officer.

8. The application is disposed of.

NEENA BANSAL KRISHNA, J JULY 5, 2024/RS This is a digitally signed order.

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